
Journal

2013 MLD 305

Court

SUPREME COURT (AJ&K)]

Date

2011-11-23

Appeal No.

CIVIL APPEAL NO. 103 OF 2010,

Judge

MUHAMMAD AZAM FCHAN, C.J. AND CH. MUHAMMAD IBRAHIM ZIA

Parties

MUHAMMAD AJAIB (APPELLANT) VERSUS TASLEEM WAKEEL RESPONDENT

Lawyers

2008 SCR 277 OVERRULED. .JMST. KOUSAR NISAR V. RAJA MUHAMMAD MAQSOOD 2000 YLR 2519 DISTINGUISHED.%4HAJI CH. MUHAMMAD ANWAR FOR APPELLANT. \$A| RESPONDENT IN PERSON.

Statutes

AZAD JAMMU AND KASHMIR FAMILY COURTS ACT (XI OF 1993) - S. 5, SCHEDULE AND S. 13

Judgment

t CH. MUHAMMAD IBRAHIM ZIA, j.-This appeal has been filed with the leave of the Court against the judgment/order of the Shariat Court dated 13-3-2010.

4 2. The precise summary of facts necessary for disposal of this appeal is that the contesting parties were married spouses but due to some controversy the suit for dissolution of marriage was filed-by the respondent in the Court of Judge Family Court Mirpur on 18-4-2008. After completion of required proceedings, the trial Court dissolved the marriage on the basis of Khula with the condition that the decree shall become final on payment of Rs.39559, the amount of Khula within one month and in case of failure the suit shall be deemed dismissed. The respondent feeling aggrieved challenged the propriety of the judgment of Family Court through an appeal in the Shariat Court on 8-9-2009 and prayed for partial modification of the judgment. The learned single Judge Shariat Court, through the impugned judgment dated 13-3-2010, while accepting the appeal partially modified the decree in the following words: - The question regarding the return of the amount is a civil liability which can be enforced by the husband through a separate suit." The appellant, through this appeal, has prayed for setting at naught the impugned judgment and restoration of the judgment of the Judge Family Court dated 8-8-2009.

3. Haji Ch. Muhammad Anwar, the learned counsel for the appellant, argued the case at some length. He stressed that the decree passed by the trial Court was in accordance with the spirit of law, hence no modification was justified. According to the principle of law when the marriage is dissolved on the ground of Khula, the dissolution can only operate on the payment of amount of Khula. He further submitted that the verdict of the learned Shariat Court in the impugned judgment that the appellant should have to file a separate suit for recovery of the amount of Khula, is against the whole scheme of the Family Courts Act, thus the same is not sustainable.

4. Respondent in person appeared. His brief argument is that the impugned judgment is quite in accordance with the principle of law and justice, therefore, it doesn't call for any interference by this Court.

5. We have considered the respective arguments of the parties and also perused the record. Both the parties have accepted the dissolution of marriage on the basis of Khula. The only controversial point between the parties is the payment of amount of Khula. The perusal of the judgment of the trial Court reveals that after framing a specific issue on the question of Khula the parties were provided opportunity for producing proof and the trial Court after appreciation of evidence has determined the amount of Khula. The question of determination of the amount of Khula has attained finality. In our view the statutory provisions of section 13 of the Azad Jammu and Kashmir Family Courts Act, 1993 remained out of consideration by both the subordinate Courts, which reads as following: - "13. Enforcement of decree:-(1) The Family Court shall pass a decree in such form and in such manner as may be prescribed, and shall enter its particulars in the prescribed register.

(2) If any money is paid or any property is delivered in the presence of the Family Court, in satisfaction of the decree, it shall enter the fact of payment and the delivery of property, as the case may be, in the aforesaid register.

(3) Where a decree relates to the payment of money and the decretal amount is not paid within the time specified by the Court, the same shall, if the Court so directs, be recovered as the arrears of land revenue, and on recovery shall be paid to the decree- holder.

(4) The decree shall be executed by the Court passing or by such other Civil Court as the District

Judge, may, by special or general order, direct.

(5) A Family Court may, if it so deems fit, direct that any money to be paid under a decree passed by it be paid in such installments as it deems fit." This Court has already in a case titled Muhammad Ramzan Khan v. Imran Khan, reported as 1995 CLC 1947, while interpreting the scope of the above referred statutory provision held that the word decree used in this provision cannot be assigned restricted meaning given to it by the Code of Civil Procedure. For convenience the relevant portion of the judgment is reproduced as following:- "This implies that word "decree" used in subsection (5) of section 13 of the Family Courts Act would apply to an order passed under section 488 in recovery proceedings even if that is not a "decree" within the meanings of Civil Procedure Code. We are fortified in our view by the meanings of word 'decree' given in Law Dictionary which are as under:- "Decree' means the formal expression of an adjudication which, so far as regard the Court expressing it, conclusively determines the right of the parties with regard to all or any of the matters in controversy in the suit-(a) any adjudication from which an appeal lies as an appeal from an order....." Again according to "Webster's Third New International Dictionary" the w'tfrd 'decree* has been assigned the meanings:- "to Command or enjoin authoritatively; to settle or decide (a legal cause) by a judgment; to determine or order judicially by authority or by decree." i It is evident from the above that the word decree appearing in subsection (5) of section 13 of the Family Courts Act cannot be assigned restricted meanings given to it by the Code of Civil Procedure. Therefore, we are of the considered view that the word 'decree' appearing in the aforesaid provision would include an order passed in the recovery proceedings of maintenance allowance and thus the Family Court was legally competent to order the payment of the arrears of maintenance allowance by installments." 9 The interpretation of section 13 of the Family Courts Act, 1993, demands that the whole scheme of law laid down in this Act along with preamble has to be considered and appreciated. The intention of the legislature is clearly ascertainable that the purpose of the enforcement of the Family Courts Act is; expeditious settlement and disposal of the disputes relating to marriage and family affairs and the matters connected therewith. Once a question of fact has been determined by the Family Court after due appreciation of evidence, dragging the parties on the same question of fact in civil suit, amounts to defeat the very purpose of this special law. Therefore, in our considered view the matter which falls within the jurisdiction of the Family Court relating to the payment of money is determined by the Family Court and a specific order is passed in this regard, such order will fall within the scope of section 13 and the same can be enforced or executed by the Family Court or if so required under the provisions of subsection (4) of section 13 by any other civil Court if so directed by special or general order of District Judge. Therefore, the impugned judgment of the Shariat Court is modified to the extent that for recovery of the amount of Khula, determined by the Family Court, separate civil suit is not required and such order is executable under the provisions of section 13 of the Azad Jammu and Kashmir Family Courts Act, 1993.

6. The learned Judge Shariat Court has placed reliance on a reported case 2008 SCR 277. Although this is an observation of a single Judge in the petition for leave to appeal without taking into consideration the relevant statutory provisions and in support of this view another reported case titled Mst. Kousar Nisar v. Raja Muhammad Maqsood 2000 YLR 2519 has been relied, wherein this Court has observed in the following words: - "In view of the findings of the Courts below that spouses can no more live within the limits ordained by the God, the marriage stood dissolved and return of benefits by wife to husband remains merely a liability of civil nature which can be enforced i by the husband through appropriate means." Thus, it is clear that in the relied case it has not been held that the amount of Khula determined by the Family Court is recoverable through a civil suit. The spirit of observation of the Court is that it is a civil liability which can be enforced through an appropriate means. The * execution of the order relating to payment of money by the Family Court is the most appropriate means. Except the word

"separate suit" the spirit of the judgment reported as 2008 SCR 277 is in line with the spirit and the principle of law enunciated by this Court in Mst. Kaousar Nisar's case. Thus with due respect the opinion of the learned Judge expressed in the case reported as 2008 SCR 277 to- the extent of "separate suit" is overruled-.

In the above indicated terms, this appeal stands partially accepted with no order as to costs.

HBT/104/SC(AJ&K) Appeal partly accepted.

easylaw Case No.

1216355

Download Case

Copyright © 2021 easylaw.ai. All Rights Reserved. | Disclaimer (<https://www.easylaw.ai/disclaimer>)